

23STCV18206 23STCV18206

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV18206 Hearing Date: September 15, 2026 Dept: 617

Dept.

617

Date:

9-15-26

Case

#: 23STCV18206

Trial

Date: N/A

ATTORNEY'S FEES

MOVING

PARTY: Plaintiff, Rex Wise

RESPONDING

PARTY: Defendants, Sunlight Financial LLC and Cross River Bank

RELIEF

REQUESTED

Motion

for Attorney's Fees

SUMMARY

OF ACTION

On

August 24, 2023, Plaintiff Rex Wise filed a First Amended Complaint against Defendants Solgen Construction LLC (Solgen), Sunlight Financial LLC (Sunlight), and Cross River Bank, alleging forgery of his signature on a 30-year loan for financing of solar panels installed on his property. Plaintiff asserted causes of action for: (1) Fraudulent Concealment; (2) Negligence; (3) Violations of the Elder Abuse and Dependent Adult Civil Protection Act; (4) Violations of the Rosenthal Fair Debt Collection Practices Act; (5) Violations of the Home Solicitation Sales Act; (6) Violations of Business and Professions Code §7150, et seq.; (7) Violations of the Truth in Lending Act; (8) Violations of the Credit Services Act; and (9) Violations of the Unfair Competition Law.

RULING: Granted.

Plaintiff

moves for an award of \$230,111.55 consisting of \$156,103.62 in attorney's fees, \$2,531.12 in costs, and a 1.5 lodestar multiplier on pre-fee motion work. Defendants Sunlight and Cross River Bank oppose the motion, challenging the reasonableness of Plaintiff's fee request. Plaintiff's motion is granted, and he is awarded \$134,168.62 in fees and costs.

The accepted Code of Civil Procedure section 998 offer designated Plaintiff as the prevailing party and specifically delegated determination of fees to the Court, thereby entitling Plaintiff to bring the subject motion. (Engle v. Copenbarger & Copenbarger, LLP (2007) 157 Cal.App.4th 165, 168-69.) [McNeile Decl. ¶ 4, Ex. A, p. 2.] A motion for attorney's fees must be served and filed within the time for the filing of a notice of appeal in a civil case. (Cal. Rules of Court, rule 3.1702(b)(1).) The time for the filing of a notice of appeal in an unlimited action is 60 days if a "Notice of Entry" of Judgment was served by the court clerk or a party to the action, or within 180 days of entry of judgment. (Id. rule 8.104.) On January 6, 2026, the Court dismissed the action without prejudice under Code of Civil Procedure section 664.6 and retained jurisdiction to enforce the terms of the parties' settlement agreement. Plaintiff filed his motion 15 days later on January 21, 2026. The motion is therefore timely. (Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 649.)

Defendants present no specific challenge to the claimed

costs, instead requesting that the Court verify their reasonableness. The Court finds no improperly listed items and the items appear reasonable. [McNeile Decl. ¶ 16, Ex. D, pp. 33-35.] The Court thus awards all claimed costs.

Plaintiff has “the burden of showing that the fees incurred [are] ‘allowable,’ [are] ‘reasonably necessary to the conduct of the litigation,’ and [are] ‘reasonable in amount.’” (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.) The lodestar method for determination of fees applies. (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 819.) “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. [Citation.] The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.)

The reasonableness of attorney fees lies within the discretion of the trial court. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096.) The Court makes its determination based on the consideration of a number of factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (Ibid.)

The Court should apply an objective standard of reasonableness. (Id. at p. 1098.) “A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635.) The Court adheres to the “market rate” approach for contingency cases, and finds the “Laffey” charts general and only suggestive. (Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1057; Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 619-20.)

Counsel lists a total of 260.9 hours, consisting of 124.5 hours by attorney Adam McNeile @ \$750/hour for a total of \$93,375, 87.5 hours by attorney Katie Sass @ \$500/hour for a total of \$43,750, and 48.9 hours by paralegal Sean Barry @ \$275/hour for a total of \$13,447. The subject action was taken on a contingency basis, with statutory recovery of attorney's fees an assumed condition for any recovery of fees by counsel. The Court finds the billable rates reasonable and represent different ranges of experience well within the rates for a consumer advocate litigator in Los Angeles County. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247, 256; Center for Biological Diversity, supra, 188 Cal.App.4th at pp. 619-20; see Lindy Bros. Builders, Inc. of Phila. v. American Radiator & Standard Sanitary Corp. (3d Cir. 1973) 487 F.2d 161, 167.) The Court likewise finds Barry's paralegal rate reasonable given his over 30 years of experience as a litigation paralegal. [McNeile Decl. ¶¶ 115-16.] While Defendants argue the listed rates are unreasonable, they provide no controverting evidence of prevailing market rates for litigators with similar experience handling comparable matters or for paralegals with similar extensive experience.

The Court next considers the listed entries. "In referring to 'reasonable' compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132; Levy, supra, 4 Cal.App.4th at p. 817.) The Court considers the listings rather than engage in a categorical determination of entitlement. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 40; Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 280-81; Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1329.)

Defendants contend the expended hours are excessive and that certain entries are duplicative and consist of unrecoverable administrative work. While Defendants do not point to specific objectionable entries, the Court agrees that some entries reflect excessive hours on discovery and motion practice, bill for duplicate and/or administrative work, and consist of impermissible block billing. The following hours/entries are thus excluded: 15.1 hours from McNeile [McNeile Decl. ¶ 16, Ex. D: 2/28/2025;

4/16/2025; 2/7/2025; 11/21/2024; 4/24/2024]; 13.9 hours from Sass [Id.: 5/13/2024; 5/14/2024; 2/3/2025; 8/2/2024; 8/5/2024; 8/6/2024]; and 2.4 hours from Barry [Id.: 7/21/2023; 11/1/2023; 9/23/2024; 2/5/2025; 3/5/2025; 4/10/2024; 2/9/2024; 9/30/2024; 10/22/2024.] This accordingly results in total hours of 109.4 for McNeile, 73.6 for Sass, and 46.5 for Barry. The Court finds the remaining hours and entries reasonable.

Plaintiff requests a lodestar multiplier of 1.5 on pre-fee motion work. When considering a lodestar enhancement request, the Court must consider a series of factors. “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum, supra, 24 Cal.4th at p. 1132.) “Contingency and delay factors” apply in consideration of the application of a lodestar enhancement in order to reflect the “semiguaranteed” recovery of fees upon a successfully prevailing party, but any consideration must still acknowledge the “contingency” nature of representation in general. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 400, fn. 11.)

“In Serrano IV, applying the same principles to the statutory fee award under Code of Civil Procedure section 1021.5, we reiterated that fee awards should be fully compensatory. We approved the calculation of attorney fees beginning with a lodestar figure based on the reasonable hours spent, multiplied by the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type. (Citation.) [¶] We held in Serrano IV that, absent circumstances rendering the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee. (Citation.) We explained that the purpose behind statutory fee authorizations—i.e., encouraging attorneys to act as private attorneys general and to vindicate important rights affecting the public interest—‘will often be frustrated, sometimes nullified, if awards are diluted or dissipated by lengthy, uncompensated proceedings to fix or defend a rightful fee claim.’ (Citation.) [¶] We acknowledged the discretion of the trial court in setting attorney fees, but emphasized that because the

determination of the lodestar figures is so fundamental to arriving at an objectively reasonable amount, 'the exercise of that discretion must be based on the lodestar adjustment method.' (Ibid.) We also reiterated that the lodestar figure may be increased by application of a fee enhancement, or reduced as appropriate, after the trial court has considered other factors concerning the lawsuit, including the contingent nature of the fee award." (Ketchum, supra, 24 Cal.4th at pp. 1133-34.)

The Court declines to award a multiplier on the subject action. "The lodestar amount is presumptively the reasonable fee amount, and thus a multiplier may be used to adjust the lodestar amount upward or downward only in "'rare' and 'exceptional' cases, supported by both 'specific evidence' on the record and detailed findings by the lower courts" that the lodestar amount is unreasonably low or unreasonably high." (Van Gerwen v. Guarantee Mut. Life Co. (9th Cir. 2000) 214 F.3d 1041, 1045.) The Court finds the lodestar determination sufficiently addresses the fee. Even considering the uncertainty caused by Sunlight's bankruptcy filing and Solgen going out of business, as well as the results obtained, the Court does not find the instant action to be a rare or exceptional case requiring an enhancement. (Blum v. Stenson (1984) 465 U.S. 886, 901; Hensley v. Eckerhart (1983) 461 U.S. 424, 434; see Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819, 844.)

Plaintiff's

motion is thus granted, and he is awarded \$134,168.62, consisting of \$131,637.50 in fees and \$2,531.12 in costs.

Because the amount of fees exceeds \$5,000, the order is immediately appealable. (Code Civ. Proc., § 904.1, subd. (a)(12); Doe v. Luster (2006) 145 Cal.App.4th 139, 146.)

Plaintiff to give notice.